

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPA060733: BERTHA CASTRO DE MORALES vs GOLD COAST TRANSIT
DISTRICT, et al.
07/06/2026 in Department 43
Demurrer**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant County of Ventura's Demurrer to the First Amended Complaint

Tentative Ruling: Defendant County of Ventura's unopposed Demurrer to the Complaint is SUSTAINED without leave to amend.

The Court has taken judicial notice of the following: The content of the official website of the Gold Coast Transit District, particularly concerning the Mission, Vision, Strategic Priorities and History of the Gold Coast Transit District.

Defendant County of Ventura has established that the complaint alleges causes of action for Motor Vehicle and General Negligence arising from a motor vehicle collision that Plaintiff alleges occurred on May 7, 2025, in the City of Oxnard, in the County of Ventura. Plaintiff alleges that she was injured in a collision with a bus operated by the Gold Coast Transit District at or near the intersection of South C Street and Maywood Way in the City of Oxnard, California.

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Defendant has also established through judicial notice that Gold Coast is a separate and distinct legal entity created by special legislation to own, operate, manage and maintain a public transit system. Plaintiff has plead no legal basis for liability against Defendant County of Ventura and Plaintiff has not demonstrated a possibility of amendment to cure the defect. Plaintiff's non-opposition to the demurrer is a concession to its merits.

The Demurrer is sustained without leave to amend. Defendant County of Ventura shall prepare an order of dismissal for the Court's signature.

Moving Party is ordered to serve notice of the Court's ruling.